

Court No. - 39

Case :- WRIT - C No. - 38462 of 2014

Petitioner :- Mukesh Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 5 Others

Counsel for Petitioner :- Vishal Agrawal, Anshika Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Learned counsel for respondents no. 1 to 4 prays for and is allowed two days time to seek instruction on the question as to whether any provisional/final assessment has been made with respect to electricity consumed by the petitioner.

On his request, let this matter again appear as fresh on 31st July, 2014.

Order Date :- 28.7.2014

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Court No. - 39

Case :- WRIT - C No. - 38462 of 2014

Petitioner :- Mukesh Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 5 Others

Counsel for Petitioner :- Vishal Agrawal, Anshika Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Ms. Usha Kiran, learned counsel for the respondents no. 1 to 4 prays for and is allowed one week and no more further time to seek instruction and/or to file counter affidavit.

Put up as fresh on 8th August, 2014.

Till 8th August, 2014, no coercive action would be taken against the petitioner in pursuance of the impugned recovery certificate dated 17-06-2014.

Order Date :- 31.7.2014

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Court No. - 39

Case :- WRIT - C No. - 38462 of 2014

Petitioner :- Mukesh Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 5 Others

Counsel for Petitioner :- Vishal Agrawal, Anshika Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Usha Kiran

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Smt. Usha Kiran, appearing for the respondent-corporation states that she has received instructions and counter affidavit is in process and shall be filed within ten days.

Rejoinder affidavit, if any, may be filed within three days thereafter.

Put up as fresh on 25th August, 2014.

Till then, no coercive action shall be taken against the petitioner in pursuance to the impugned recovery certificate.

Order Date :- 8.8.2014

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Court No. - 39

Case :- WRIT - C No. - 38462 of 2014

Petitioner :- Mukesh Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 5 Others

Counsel for Petitioner :- Vishal Agrawal, Anshika Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Usha Kiran

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

We have heard Shri Vishal Agarwal, learned counsel for the petitioner, learned Standing Counsel for respondent nos. 5 and 6 and Ms. Usha Kiran for respondents no. 1 to 4.

On 28.07.2014, the respondents were required to seek instructions as to whether any provisional assessment was made against the petitioner; whether provisional assessment was served upon the petitioner and if so, whether petitioner filed objections and same were decided by the concern authority; and, in case, the objections were decided, whether final assessment was sent to the petitioner before issuing notice and initiating recovery.

Today counter and rejoinder affidavit have been filed and the same are taken on record.

When the matter has been called out, Ms. Usha Kiran, learned counsel for the respondents no. 1 to 4 states that a provisional assessment to the tune of Rs.4,96,105/- was made and notice/letter no. 718/11 dated 1.8.2013 was sent to the petitioner through ordinary post and since he did not file any objection/reply, the same was treated as final assessment and a recovery certificate was issued.

This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment does not give the basis on which petitioner was assessed to pay Rs. 4,96,105/-. The assessing authority has not recorded its satisfaction that the petitioner has committed theft of electricity. In the counter affidavit, it has been stated that provisional assessment was sent vide notice No. 718/11 dated 1.8.2013 through ordinary post and further there is nothing to show that it was received by petitioner.

In view of the fact that the instructions do not contain any positive reply with regard to method of service, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005 to give reply and object to the provisional assessment.

The writ petition is allowed. The impugned demand notice dated 01.08.2013 and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in ***Ashok Kumar (supra)***.

Order Date :- 25.8.2014

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